

Zamir Akhatar v. Managing Director, Purvanchal Vidyut Vitran Nigam and Another

High Court of Judicature at Allahabad · Division Bench · 31 July 2023 · 2023:AHC:152928-DB · WRIT - C No. - 24936 of 2023 · **Writ disposed; s.127 appeal in two weeks, limitation ignored**

HEADNOTE

On counsel's concession of an alternative appeal, and with no objection from the licensee, the writ was disposed of. The petitioner was permitted to file within two weeks the appeal described as one under Section 127 of the Electricity Supply Code, 2005, and the appellate authority was directed to decide it on merits ignoring limitation.

FACTUAL SUMMARY

Zamir Akhatar brought Writ-C No. 24936 of 2023 before the Allahabad High Court against the Managing Director, Purvanchal Vidyut Vitran Nigam, and another. His counsel told the Court that an appeal was available under the provision he called Section 127 of the Electricity Supply Code, 2005. He said the time for that appeal had run out while the writ was being prosecuted, and he asked that the appellate authority be told to ignore limitation. Counsel for the Nigam did not object.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

Section 127 appeal; limitation during writ

HOLDING

Where the petitioner concedes an alternative remedy of appeal and limitation has expired while the writ was being prosecuted, and the licensee does not object, the writ may be disposed of by permitting the appeal within two weeks and directing the appellate authority to decide it on merits, ignoring limitation. ¶ 1

FLAG The order calls the appeal one under Section 127 of the Electricity Supply Code, 2005. Section 127 is a provision of the Electricity Act, 2003, not of the Supply Code.

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 On the petitioner's concession that an appeal lay, and with no objection from the licensee, the writ was disposed of and he was permitted to file that appeal within two weeks, the authority to decide it on merits ignoring limitation. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE UNDERLYING ELECTRICITY DISPUTE

Left to the appellate authority, which is to decide the appeal on merits if filed within two weeks. ¶ 1